

Intake Form (for online negotiation)

Section 1. Party Information

1.1 Primary Contact Person

- Full Name: Alex Chan
- Organization (if any): Zhi Yu Engineering Company
- Position / Role: Project Manager
- Email: accounts@zhiyueng.com.hk
- Phone Number: +852 2345 6789
- Preferred Communication Method: ☐ Email ☐ Phone ☐ In-Platform Messaging

1.2 Party Type

- ☐ Individual
- ☒ Company
- ☐ Government / Public Body
- ☐ NGO / Association

1.3 Representative Information (if applicable)

- Legal/Authorized Representative Name: _____
- Law Firm / Organization: _____
- Email: _____
- Phone: _____

Section 2. Case / Matter Overview

2.1 Negotiation Title

(e.g., “Service Agreement Renewal”, “Payment Dispute”, “IP Licensing Terms”)

Renovation Contract Dispute – Response from Contractor

2.2 Brief Description of the Matter

(What is the negotiation about? Provide a short summary.)

Zhi Yu Engineering Company undertook a HK\$2,202,000 renovation project for Mr. Chan Tai Man's flat. Although delays occurred due to supply issues and weather, the contractor asserts these were unavoidable and communicated promptly. Material substitutions were made due to supply constraints but, according to Party B, the substitutes "meet industry standards." Extra labor charges were added for weather-related rework.

2.3 Background and Key Events

(Chronology or context relevant to negotiation.)

Contract signed on 31 October 2024

Contractor completed project on 7 February 2025 after delays from:

- Supplier issues with tiles (emails dated 5 Feb & 2 Mar 2025)
- Weather impacts affecting waterproofing (emails dated 19 Feb 2025)

Material substitutions were confirmed by contractor due to supply issues (email 16 Feb 2025)

Additional labor charges invoiced due to rework requirements

2.4 Supporting Documents (upload)

- ☐ Contract / Draft Agreement
- ☐ Correspondence
- ☐ Proposals / Quotations
- ☐ Evidence or Reference Documents

Section 3. Issues to Be Negotiated

3.1 Key Issues to Address

(List the specific clauses, terms, or topics requiring negotiation.)

Example fields:

- Issue 1:

Delays attributed to external factors beyond contractor control:

Weather conditions preventing waterproofing work

Supplier delays for tiles and fixtures

- Issue 2:

We acknowledges substitutions occurred

Claims substitutes meet “industry standards”

Wants to avoid liability for alleged defects

- Issue 3:

Contractor added charges for:

Extra waterproofing labor due to weather (HK\$333,500)

Material substitution costs (HK\$202,000)

Specialized paint cost (HK\$201,500)

Rework labor (HK\$400,000)

- More:

3.2 Priority of Each Issue

- ☒ High
- ☐ Medium
- ☐ Low

Section 4. Objectives & Positions

4.1 Your Desired Outcome

(What do you want to achieve?)

Recognition that delays were caused by external factors (weather, suppliers)

Acceptance that material substitutions were necessary and comparable in quality

Acceptance of additional charges billed

Minimize or eliminate compensation owed

Aim for settlement without further legal consequences

4.2 Minimum Acceptable Outcome

(Your walk-away level.)

Reduction (not full reversal) of disputed extra charges

Partial compromise on delay-related claims

No liability for diminished property value

4.3 Flexibility Level

- ☐ High
- ☒ Moderate
- ☐ Low

4.4 Proposed Solutions or Options

(List any alternatives you are willing to offer.)

Offer partial waiver of some additional charges

Provide small goodwill discount instead of compensation

Offer short-term warranty or minor remedial work instead of monetary compensation

Propose shared responsibility for delays

Section 5. Other Party Information

5.1 Other Party Name / Organization Mr. Chan Tai Man (Homeowner)

5.2 Contact Person (if known) _____

5.3 Their Expected Positions (optional)

(What do you believe their stance will be?)

Section 6. Additional Notes

(Open text field for anything not captured above.)

Our communications show acknowledgment of delays

Contractor's explanations rely heavily on external factors

Financial records show unexplained additional charges

-End of the form-

ebram.org